

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF RYZHOVA AND OTHERS v. RUSSIA

(Applications nos. 79729/13 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

6 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Ryzhova and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and/or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as organisers and/or participants of public assemblies, namely the dispersal of these assemblies, as well as the applicants' arrest followed by their conviction for an administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC],

no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006 XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia*, no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia*, no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia*, no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest, and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences(CAO)).

IV. REMAINING COMPLAINTS

12. In view of its findings above, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention raised by some of the applicants in relation to other aspects of the fairness of the proceedings.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the right to peaceful assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the right to peaceful assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 6 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	79729/13 28/11/2013	**Yekaterina Nikolayevna RYZHOVA** 1976	Bukvareva Aleksandra Alekseyevna Moscow	Anti-government manifestation Moscow 09/05/2013	Article 20.2 § 5 of CAO	fine of RUB 5,000	Moscow City Court 30/09/2013		3,500
2.	26673/14 28/03/2014	**Ivan Vasilyevich ANOSHKIN** 1980	Golichenko Mikhail Mikhaylovich Balashikha	Manifestation in support of AIDS patients Tolyatti 19/05/2013	Article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 30/09/2013		3,500
3.	68813/14 08/10/2014	**Askhat Minnikhanovich NAZMUTDINOV** 1948		Manifestation Perm 12/06/2013	Article 20.2 § 2 of CAO	fine of RUB 15,000	Perm Regional Court 09/04/2014		3,500
4.	24845/15 17/04/2015	**Mikhail Mikhaylovich NAZARENKO** 1981		Public gathering Mineralnye Vody 24/01/2015	Article 20.2 § 6.1 of CAO	administrative detention of 5 days	Stavropol Regional Court 18/03/2015		5,000

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5.	34454/15 18/06/2015	**Ilmira Mansurovna SHAYKHRAZNOVA** 1991	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	LGBT manifestation Lipetsk 26/10/2014	Article 20.2 § 2 of CAO	fine of RUB 20,000	Lipetsk Regional Court 18/12/2014	Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative-offence proceedings. Final decision: Lipetsk Regional Court on 18/12/2014	3,500
6.	4043/16 30/12/2015	**Irina Vladimirovna PAYKACHEVA** 1953	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation to commemorate Boris Nemtsov Murmansk, Five Corners Square 01/03/2015	Article 20.2 § 2 of CAO	fine of RUB 20,000	Murmansk Regional Court 05/08/2015	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative offence proceedings: Final decision: Murmansk Regional Court on 05/08/2015	3,500
7.	13326/16 27/02/2016	**Yuriy Ilyich IZOTOV** 1996	Kachanov Roman Yevgenyevich Yekaterinburg	Piquet against human rights violations Yekaterinburg 30/05/2015	Article 20.2 §1 of CAO	fine of RUB 10,500	Sverdlovsk Regional Court 27/08/2015		3,500
8.	38831/16 22/06/2016	**Andrey Viktorovich KOROLEVSKIY** 1988		Flash mob Moscow 18/08/2015	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/01/2016	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 13/03/2016	5,000

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				Stroll for peace Moscow 13/03/2016	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/07/2016	and on 18/08/2015 for the sole purpose of drawing up a record of administrative offence; on 18/08/2015 detained for 14 hours; raised on appeal, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in both sets of the administrative-offence proceedings: Final decisions: Moscow City Court on 22/01/2016 and 06/07/2016	
9.	63556/16 17/10/2016	**Piter Leonid Karl MARS** 1993		March for change Moscow 12/12/2015	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 20/04/2016	Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative-offence proceedings. Final decision: Moscow City Court on 20/04/2016	3,500
10.	63614/16 26/10/2016	**Aleksandr Sergeyevich PUCHKOV** 1988	Zboroshenko Nikolay Sergeyevich Mytishchi	Peace Protest ("Марш мира") Moscow 27/09/2015	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/04/2016	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unrecorded arrest and detention for 5 hours for the sole purpose of drawing up a	4,000

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								record of administrative offence on 27/09/2015, raised on appeal, Art. 6 (1) - lack of impartiality of tribunal - in view of the absence of a prosecuting party in the administrative-offence proceedings. Final decision: Moscow City Court on 26/04/2016	
11.	64477/16 25/10/2016	**Aleksandr Veniaminovich SHCHERBAKOV** 1977	Zboroshenko Nikolay Sergeyevich Mytishchi	Stroll to protest the policy towards Ukraine Moscow 18/08/2015	Article 20.2 § 5 of CAO	fine RUB 10,000	Moscow City Court 26/04/2016	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 18/08/2015 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 26/04/2016	4,000

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12.	73182/16 22/11/2016	**Olga Pavlovna ILYICHEVA** 1976		March for change Moscow 12/12/2015	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 24/05/2016	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unreasoned arrest on 12/12/2015; detention in excess of 3 hours; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 24/05/2016	4,000
13.	74418/16 22/11/2016	**Sergey Vladimirovich CHINENOV** 1972	Zboroshenko Nikolay Sergeyevich Mytishchi	March for change Moscow 12/12/2015	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 24/05/2016	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 24/05/2016	3,500

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14.	78177/16 28/11/2016	**Vasiliy Ivanovich NEDOPEKIN** 1997	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation Moscow 08/03/2016 Manifestation Moscow 25/03/2016 Manifestation near the United Russia Headquarters Moscow 04/07/2016	Article 20.2 § 5 of CAO Article 19.3 § 1 of CAO Article 20.2 § 2 of CAO	fine of RUB 10,000 fine of RUB 1,000 fine of RUB 10,000	Moscow City Court 30/05/2016 Moscow City Court 02/08/2016 Moscow City Court 16/11/2016	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in all sets of the administrative proceedings: Final decisions: Moscow City Court on 30/05/2016, 02/08/2016 and 16/11/2016	4,000
15.	3997/17 27/12/2016	**Anna Anatolyevna BOKLER** 1994		Procession for peace Moscow 13/03/2016	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/07/2016	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court on 06/07/2016	3,500

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16.	35326/17 06/05/2017	**Olga Vitalyevna ISHLINSKAYA** 1990	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation the United Russia Headquarters (at 12.30 p.m.) Moscow 01/07/2016 Manifestation near the United Russia Headquarters (at 7 p.m.) Moscow 01/07/2016 Manifestation near the United Russia Headquarters Moscow 02/07/2016	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000 fine of RUB 10,000	Moscow City Court 16/11/2016 Moscow City Court 16/11/2016 Moscow City Court 26/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention in excess of 3 hours on 01/07/2016 at 12.30 p.m. and then at 7 p.m., following the applicant's return to take part in the evening manifestation, and on 02/07/2016 for the sole purpose of drawing up a record of administrative offence; raised on appeal; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (all sets of the proceedings). Final decisions: Moscow City Court on 16/11/2016 (two decisions) and 26/05/2017	5,000

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17.	35460/17 06/05/2017	**Nadezhda Vladimirovna SOBOLKOVA** 1966	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation near the United Russia Headquarters (at 12.30 p.m.) Moscow 01/07/2016 Manifestation near the United Russia Headquarters (at 7 p.m.) Moscow 01/07/2016 Manifestation near the United Russia Headquarters Moscow 02/07/2016	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000 fine of RUB 10,000	Moscow City Court 16/11/2016 Moscow City Court 16/11/2016 Moscow City Court 26/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 01/07/2016 around 12.30 p.m. and then after 7 p.m., following the applicant's return to take part in the evening manifestation, and on 02/07/2016 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; raised on appeal; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (all sets of the proceedings). Final decisions: Moscow City Court on 16/11/2016 (two decisions) and 26/05/2017	5,000

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18.	35583/17 06/05/2017	**Svetlana Vladimirovna DEMINA** 1977	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation near the United Russia Headquarters (at 12.30 p.m.) Moscow 01/07/2016 Manifestation near the United Russia Headquarters (at 7 p.m.) Moscow 01/07/2016 Manifestation near the United Russia Headquarters (at 12.30 p.m.) Moscow 02/07/2016	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000 fine of RUB 10,000	Moscow City Court 30/05/2017 Moscow City Court 16/11/2016 Moscow City Court 24/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 01/07/2016 around 12.30 p.m. and then after 7 p.m., following the applicant's return to take part in the evening manifestation, and on 02/07/2016, in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (in all sets of the proceedings). Final decisions: Moscow City Court on 16/11/2016, 24/05/2017 and 30/05/2017	5,000

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19.	35611/17 06/05/2017	**Timur Vladimirovich ANISIMOV** 1986	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation near the United Russia Headquarters (at 12.30 p.m.) Moscow, Bannyy Pereulok 01/07/2016 Manifestation near the United Russia Headquarters (at 7 p.m.) Moscow, Bannyy Pereulok 01/07/2016	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Moscow City Court 16/11/2016 Moscow City Court 16/11/2016	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 01/07/2016 around 12.30 p.m. and then after 7 p.m., following the applicant's return to take part in the evening manifestation, both times detention in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings (in both sets): Final decisions: Moscow City Court on 16/11/2016 (two decisions)	4,000

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20.	35852/17 06/05/2017	**Svetlana Vasilyevna VDOVINA** 1962	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation near the United Russia Headquarters (12.30 p.m.) Moscow, Bannyy Pereulok 01/07/2016 Manifestation near the United Russia Headquarters (at 7 p.m.) Moscwow, Bannyy Pereulok 01/07/2016	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Moscow City Court 26/05/2017 Moscow City Court 16/11/2016	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 01/07/2016 around 12.30 p.m. and then after 7 p.m., following the applicant's return to take part in the evening manifestation, both times in excess of 3 hours, for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings. Final decisions: Moscow City Court on 16/11/2016 and 26/05/2017	4,000

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21.	37599/17 06/05/2017	**Elmira Ansarovna GUBEROVA** 1980	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation near the United Russia Headquarters (at 12.30 p.m.) Moscow 01/07/2016	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/11/2016	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unrecorded detention following the apprehension by the police on 01/07/2016; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 16/11/2016	4,000
22.	37728/17 05/05/2017	**Luiza Aleksandrovna MARTYANOVA** 1988	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation near the United Russia Headquarters (at 12.30 p.m.) Moscow 01/07/2016	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 01/07/2016 around 12.30 p.m. and then after 7 p.m., following the applicant's return to take part in the evening manifestation, both times in	4,000

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				Manifestation near the United Russia Headquarters (at 7 p.m.) Moscow 01/07/2016	Article 20.2 § 2 of CAO	fine of RUB 10,000	Moscow City Court 22/05/2017	excess of 3 hours for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in respect of both sets of the proceedings. Final decisions: Moscow City Court on 22/05/2017 (two decisions)	

[1] Plus any tax that may be chargeable to the applicants.